

24NWCV03311 24NWCV03311

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CC%2C07%2F02%2F2026

Source SHA-256: 84a01a84f399ca8e967af69ecbe7817d4a441d3537bba67797ac9ef77d745551

Case Number: 24NWCV03311 Hearing Date: July 2, 2026 Dept: C

JESUS VALDES MARQUEZ

vs GERARDO VALLES

CASE NO.: 24NWCV03311

HEARING: 7/2/26 @ 9:30 AM

#2

TENTATIVE ORDER

Defendant GERARDO VALLES's Motion for Leave
to Submit a Tardy Expert Designation is GRANTED in part and DENIED in part as
set forth below. No monetary sanctions.

Moving Party to give NOTICE.

Defendant GERARDO VALLES (Defendant) moves for an
order allowing a tardy expert designation on the
grounds that counsel for defendant mistakenly missed the expert designation
deadline.

Background

This action arises from
a premises liability incident that occurred on December 7, 2022, when Plaintiff
JESUS VALDES MARQUEZ (Plaintiff) fell into a hole near the trash bins at a
South Gate rental property at night and suffered a fractured leg and spinal

injuries. (Complaint, Prem.L-1, pp. 6.)

Trial

is scheduled for July 20, 2026.

The

parties agreed that the exchange of expert witnesses would occur on June 1, 2026. (Nicolas Decl., ¶9.) Plaintiff timely served his expert designation on June 1, 2026, but Defendant failed to do so. (Id. at ¶11.)

Legal

Standard

Any party may demand a mutual and simultaneous exchange by all parties of a list containing the name and address of any person whose oral or deposition testimony in the form of an expert opinion any party expects to offer in evidence at the trial. (Code Civ. Proc., § 2034.210(a).) “On motion of any party who has failed to submit expert witness information on the date specified in a demand for that exchange, the court may grant leave to submit that information on a later date.” (Code Civ. Proc., § 2034.710(a).) The motion shall be made a sufficient time in advance of the time limit for the completion of discovery to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time. (Code Civ. Proc., § 2034.610(b).) The motion shall be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2034.610(c).)

The court shall grant

leave to submit tardy expert witness information only if all of the following conditions are satisfied: (a) the court has taken into account the extent to which the opposing party has relied on the absence of a list of expert witnesses; (b) the court has determined that any party opposing the motion will not be prejudiced in maintaining that party’s action or defense on the merits; (c) the court has determined that the moving party did all of the following: (1) failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect, and (2) sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect;

and (d) the order is conditioned on the moving party making the expert available immediately for a deposition, and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion. (Code Civ. Proc., § 2034.720.)

Discussion

Defendant seeks an order permitting defense counsel to submit tardy expert witness information on the grounds that defense counsel inadvertently missed the deadline because she is currently pregnant and preparing for her maternity leave. In the weeks preceding the deadline to designate experts, counsel for defendant was and is currently in the process of preparing her files for transfer to other attorneys in the firm. On June 11, 2026, Plaintiff's counsel sent Defense counsel an email stating Defendant's expert designation was late and they would not accept any untimely expert designations. Upon learning this, Defendant immediately served their expert witness designation, which includes (1) orthopedic surgeon Dr. Eric Millstein, and (2) biomechanical engineer Alex Kazmierczak.

Defendant further argues that Plaintiff was already aware of the orthopedic expert, as Dr. Millstein conducted a prior independent medical examination and the corresponding report was served on Plaintiff's counsel on February 10, 2026. Plaintiff was also aware that Defendant anticipated designating expert witnesses, as Defendant served two Demands to Exchange Lists of Expert Witnesses. Therefore, there is no identifiable prejudice to Plaintiff arising from the late service.

In opposition, Plaintiff argues that Defendant's motion depends on two defective declarations. The declaration of Amanda R. Guirguis describes events of June 11 and June 12, 2026, yet closes "Executed on June 1, 2026, at San Diego, California." (Guirguis Decl., ¶¶ 9–12.) Additionally, the declaration supporting Defendant's designation contains no statement that it is made under penalty of perjury under the laws of the State of California. (Nicolas Decl., ¶ 13, Exh. I.) Plaintiff argues that the omission is not a technicality: a writing that omits the penalty-of-perjury attestation is not a

declaration at all, and the designation the statute requires it to accompany is therefore unsupported by the sworn declaration section 2034.260 demands. Moreover, Plaintiff contends that neither the motion nor the supporting declaration states when defense counsel's maternity leave is to begin, or when the asserted transfer of her files was occurring relative to June 1, 2026. (See Def.'s Mot. at pp. 3–4; Guirguis Decl., passim.) As to prejudice, in addition to the defective designation, Plaintiff argues to be prejudiced by the untimeliness given Plaintiff has already spent time preparing for a trial where Defendant designated no experts.

Leave is GRANTED to Defendant to submit a tardy expert designation for Eric S. Millstein, M.D., an orthopedic surgeon. With respect to all other retained and non-retained experts, leave is DENIED because Defendant has failed to demonstrate compliance with Code Civ. Proc., § 2034.720; specifically, Defendant has not shown that Plaintiff will not be prejudiced by the tardy designation. The Court notes that Defendant has withdrawn Alex Kazmierczak, MS, ACTAR, a biomechanical expert. (Nicolas Decl., ¶17.) Moreover, it is unclear to the Court why defense counsel's transfer of files to another attorney within the same firm led to the missed deadline. There is no evidence that firm calendaring would be compromised by this transition.

Accordingly, Defendant's Motion for Leave to Submit a Tardy Expert Designation is DENIED in part and GRANTED in part. This order permits only Dr. Millstein to be designated as an expert witness for Defendant.

Monetary Sanctions

Plaintiff has requested monetary sanctions in the amount of \$1,750.00 pursuant to Code of Civil Procedure section 2034.730. Plaintiff's counsel declares to have expended no fewer than five hours reviewing Defendant's motion and supporting papers, researching the applicable authorities, and preparing this Opposition and this declaration. At Plaintiff's counsel's reasonable hourly rate of \$350, the reasonable fees incurred in opposing this motion total no less than \$1,750.00. (Nicolas Decl., ¶ 27.)

Section

2034.730 provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to submit tardy expert witness information, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2034.730.)

Under the

circumstances here, the Court declines to impose sanctions upon Defense Counsel.